

HOUSE No. 1929

The Commonwealth of Massachusetts

PRESENTED BY:

Francisco E. Paulino

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to expand juvenile court justice access.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Francisco E. Paulino</i>	<i>16th Essex</i>	<i>1/8/2025</i>

HOUSE No. 1929

By Representative Paulino of Methuen, a petition (accompanied by bill, House, No. 1929) of Francisco E. Paulino for legislation to increase the assignment, distribution and training of justices in the juvenile court. The Judiciary.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to expand juvenile court justice access.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Amendment to Chapter 218 of the General Laws

2 Section 58 of Chapter 218 of the General Laws, as most recently amended by Chapter
3 154 of the Acts of 2018, is hereby amended by striking out the number of justices specified for
4 each county and replacing it with the following revised totals. These adjustments increase the
5 total number of justices in the Juvenile Court Department from 42 to 80, reflecting population
6 growth and youth demographics in each county:

7 Suffolk County: 10 justices

8 Middlesex County: 10 justices

9 Worcester County: 8 justices

10 Franklin and Hampshire Counties: 3 justices

11 Bristol County: 6 justices

12 Essex County: 8 justices

13 Norfolk County: 5 justices

14 Plymouth County: 6 justices

15 Barnstable County and the Town of Plymouth: 3 justices

16 Berkshire and Hampden Counties: 5 justices

17 SECTION 2. Assignment and Distribution of Justices

18 The Chief Justice of the Juvenile Court Department, in consultation with the Chief Justice
19 of the Trial Court, shall develop a detailed plan for the assignment of the newly authorized
20 justices to the respective divisions. This plan shall include, but not be limited to:

21 Caseload Analysis: An assessment of existing and projected caseloads to determine areas
22 of highest need.

23 Demographic Considerations: An evaluation of county population trends, youth
24 demographics, and socio-economic factors that impact the demand for juvenile justice services.

25 Equitable Allocation: Ensuring that resources are distributed equitably among counties to
26 address disparities in access to justice.

27 Periodic Review: Establishing a system of periodic review and reallocation to adapt to
28 changing needs and circumstances.

The Chief Justice shall submit a report detailing the assignment plan to the Joint Committee on the Judiciary and the Senate and House Committees on Ways and Means within 90 days of the enactment of this legislation.

SECTION 3. Implementation and Training

To ensure the effective implementation of this act, the following steps shall be taken:

Judicial Appointments: The Governor, in consultation with the Judicial Nominating Commission, shall prioritize the appointment of qualified individuals to fill the newly created judicial positions.

Training and Orientation: Newly appointed justices shall undergo comprehensive training on juvenile justice, including trauma-informed practices, restorative justice approaches, and relevant statutory and case law.

Support Staff: Adequate funding shall be allocated to hire and train support staff, including clerks, probation officers, and court-appointed advocates, to assist the expanded judiciary.

Facilities Assessment: The Executive Office of the Trial Court shall conduct an assessment of court facilities to ensure that the physical infrastructure can accommodate the expanded judiciary and increased caseloads.

SECTION 4. Funding

The General Court shall appropriate the necessary funds to support the expansion of the Juvenile Court Department, including but not limited to judicial salaries, staff hiring, training

49 programs, and infrastructure improvements. These funds shall be allocated in a manner that
50 ensures timely implementation of this act.

51 SECTION 5. Effective Date

52 This act shall take effect on January 1, 2027, or upon passage, whichever occurs later. All
53 preparatory measures, including judicial appointments and facility assessments, shall commence
54 immediately upon passage to ensure full readiness by the effective date.

55 SECTION 6. Reporting and Accountability

56 The Chief Justice of the Juvenile Court Department shall submit an annual report to the
57 Joint Committee on the Judiciary detailing the impact of the expanded judiciary, including
58 metrics on case resolution times, access to justice, and any identified areas for further
59 improvement. The first report shall be submitted no later than December 31, 2027.